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Request for Information: Development of an Artificial Intelligence Action Plan

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Submitter Information

Name: Anonymous Anonymous

Email: [REDACTED]

General Comment

From:

R. Vance

Jackson, TN

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an everyday American, I have yearned to work in the entertainment industry, to develop the skills and knowledge needed to work in it, and want to make a decent living off of something I love to do - until recently.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses like mine with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. Thousands of other everyday American creators' work were taken and fed into these AI systems without their consent or any compensation. They ingest their work, reassemble it, and then sell it back to their clients – directly competing with them and cutting them out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

Want to protect American innovation? Protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is

preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology, and up to this point, I have not be anti-AI. I want to be amazed by these AI system's potential, and want to see it be used for more useful things. But this isn't it, the answer is not to sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.